

Section 176. (Power of Central Government to make rules): --- (1) The Central Government may, by notification, make rules for carrying out the provisions of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely: - (a) the time within which the objection and suggestions on

the draft National Electricity Plan to be invited by the Authority under the proviso to sub-section (4) of section 3;

- (b) the additional requirements ¹ [relating to the capital adequacy, creditworthiness or code of conduct] under sixth proviso to section 14;
- (c) the payment of fees for application for grant of licence under subsection (1) of section 15;
- (d) the constitution and functions of the National Load Despatch Centre under sub-section (2) of section 26;
- (e) the works of licensees affecting the property of owner or occupier under sub-section (2) of section 67;
- (f) such other cases which may be prescribed under clause (c) of subsection (2) of Section 68;
- (g) allowances and fees payable to others Members for attending the meetings of Authority under sub-section (14) of section 70.
- (h) other terms and conditions of service of the Chairperson and Members of the Authority under sub-section (15) of section 70;
- (i) the functions and duties of the Central Electricity Authority under section 73;
- (j) the salary, allowances and other conditions of service of Chairperson and Member of Central Commission under subsection (2) of section 89;
- (k) the form and manner in which and the authority before whom oath of office and secrecy should be subscribed under sub-section (3) of section 89;
- (l) the procedure to be prescribed by the Central Commission under the proviso to sub- section (2) of section 90;

¹ Subs. by Act 26 of 2007, Sec.19 for the words “(including the capital adequacy, creditworthiness or code of conduct) (w.e.f. 15th June 2007).

- (m) any other matter required to be prescribed under clause (g) of subsection (1) of section 94;
- (n) the form in which the Central Commission shall prepare its annual statement of accounts under sub-section (1) of section 100;
- (o) the form in which and time at which the Central Commission shall prepare its annual report under sub-section (1) 101;
- (p) the form in which and time at which the Central Commission shall prepare its budget under section 106;
- (q) the form and the manner of verifying such form, and fee for filing appeal under sub-section (2) of section 111;
- (r) the salary and allowances payable to and the other terms and conditions of service of the Chairperson of the Appellate Tribunal and Members of the Appellate Tribunal under section 115;
- (s) the salary and allowances and other conditions of service of the officers and employees of the Appellate Tribunal under subsection (3) of section 119;
- (t) the additional matters in respect of which the Appellate Tribunal may exercise the powers of a civil court under clause (i) of subsection (2) of section 120;
- (u) the authority to whom the appeal shall be filed under sub-section (1) of section 127;
- (v) manner of holding inquiry by an adjudicating officer under subsection (1) of section 143;
- (w) the form in which and the time at which service of notices to any person or to the Central Government for the purpose under subsection (1) of section 161;
- (x) the powers to be exercised and the functions to be performed by the Inspectors under sub-section (1) of section 162;

- (y) the manner of delivery of every notice, order or document to be served under sub-section (1) of section 171;
- (z) any other matter which is required to be, or may be, prescribed.